

Constitutional Development

of India

*British Government passed **Regulating Act, 1773** to curb rampant corruption and misgovernance. According to this act, **Madras and Bombay Presidencies came under the Calcutta Presidency**. Governor of Bengal became Governor-General of Bengal. **Warren Hastings was appointed the first Governor-General of Bengal**. The aim of the Regulating Act was to put the activities of East India Company in India under the supervision of the British Government.

*By the Regulating Act of 1773 a **Supreme Court** was established at Calcutta with a **Chief Justice** and three other judges. The Supreme Court was established in 1774 AD with **Elijah Impey** as its Chief Justice, and Robert Chambers, Le Maistre and John Hyde as its other justices. *In the year **1786 AD**, a bill was presented before the British Parliament to make **Cornwallis** the Governor-General of Bengal. According to the new rule, the Governor-General was given veto power over the decision of its council in some special cases. Cornwallis didn't want the District Magistrate to be very powerful so he adopted the principle of **separation of power**. *Monopoly of trade of East India Company (except trade in tea and trade with China) came to an end by **1813 Charter Act**. With this Act of 1813 for the next 20 years the Company was granted the control of revenue of the Indian states. *By the **Charter Act of 1833**, all the financial rights of the Company were abolished and the company was given only political works. By this Act, the Governor-General of Bengal became the Governor General of India. By this act a **law member** was added as the 4th member to the Governor-General's executive council. The Law member will be of English origin. ***Macaulay** became the first law member of the Governor-General's executive council. *By the **Charter Act of 1853**, the salaries of Members of Board of Control started to be decided by the British Parliament but was paid by the East India Company. The number of directors were decreased 18 out of 24, and 6 out of those were to be nominated by crown. There was a provision in this act that recruitment to the service would be done by competitive exams without any discrimination. *British Government by the **Government of India Act, 1858**, took away the control of Administration of India from the Company. Now all the powers of the Board of Control and Court of directors was handed over to **Secretary of State for India**. *Governor General of India was granted **right to issue ordinance in Emergency Period** by the **Indian Council Act, 1861**. These ordinances had a maximum life of 6 months. By this Act, the executive council of viceroy was given law-making powers. ***Lord Canning** started **Portfolio system**, Lord Canning gave departments to other members of his council

this way he prepared the base of Ministerial government system in India. By this system, each department of administration was assigned to one member. On the recommendation of Montague Chelmsford reforms, Civil Services exam started to be held together in India and England from the year 1922 AD.

***Aitchison Commission** in its report in **1887** stated that the Indian Civil Services Exam should not be held in India and England together. *The reforms announced on 20 August 1917 AD are also known as Montague-declaration on the name of the then Secretary of State for India Montague. *The report of then Viceroy Lord Chelmsford and Secretary of State for India Montague became the base of **Government of India Act, 1919**. * The **Dyarchy** at provinces was introduced by Mont-ford reforms, 1919. It is also called as Government of India Act 1919. By this Act, the subjects of provinces were divided into two categories **reserved** and **transferred** subjects. **Transferred subjects** were given to the legislative cabinet of that province whereas the **reserved subjects** were looked on by the Governor's Council. * In **1926 AD**, India's **Public Service Commission** was constituted. By the Indian Council Act 1861, the council of viceroy was expanded and additional members minimum **6** and maximum **12** were added to this council, for lawmaking processes. They were nominated by Viceroy and had a tenure of two years. In this council, at least half of the members were to be non-officials. *By this act the Madras and Bombay Presidencies were restored of their lawmaking power and were allowed to make amendments to the existing law. But the laws made by these Presidencies would be valid only after the assent of the Governor-General. *High Courts at Bombay, Madras and Calcutta were established by **Indian High Court Act, 1861**. *By the **Indian Council Act, 1892**, the rights of the Members of Legislative Assemblies were increased in two aspects -

- (i) They were given the right to discuss the **budget** without the right to vote or to move any amendment to the budget.
- (ii) After giving the advance notice of 6 days, they were allowed to asks questions on Public interests.

***Indian Council Act, 1909** was of the shortest duration amongst the constitutional experiments of Britain in India. In words of **Ramsay MacDonald**, "This reform is incomplete and momentarily deal between democracy and bureaucracy".

*Montagu-Chelmsford reforms in its report in 1918 stated that the Indians participation in administration should be increased. It was also proposed in the report that the exam of Indian Civil Services should be held together in India and Britain and one-third of the seats should be reserved for Indians. *By the 1935 Act, the Public Service Commission became the **Federal Public Service Commission**. *From 1937 AD, Federal Public Service Commission and British Public Service Commission started conducting their exams separately. In 1950, after the enactment

of constitution, the Federal Public Service Commission was renamed as **Union Public Service Commission**. *By this Act Dyarchy at Provinces were **abolished** and **Dyarchy was introduced at the centre**. Provinces were given autonomy and the dual governance came to an end. With this the distinction between the reserved and transferred was abolished. The separate communal electorate was expanded and now it included Schedule Castes, Muslims, Sikh, Europeans, Anglo-Indians, Indian Christians etc. The present Constitution of India is very familiar to the 1935 Act.

The Main Provisions of 1935 Act are-

- (1) Establishment of Federal Government
- (2) Dyarchy at Centre
- (3) Autonomy of provinces was restored and Dyarchy at provinces abolished.
- (4) Bicameral central legislative
- (5) System of Provincial government
- (6) Provincial Legislative Assembly
- (7) Division of Power between centre and provinces
- (8) Establishment of federal court, etc.

*Jawahar Lal Nehru said, "1935 Act is a Car with brakes but without Engine". He was the Prime Minister of India from 1947 to 1964 AD. He was the author of '**Panchsheel**' and a believer of **Non-align Movement**. Nehru in his address to Congress in Lucknow Session, 1936 AD rejected Government of India Act 1935, he termed this Act as warrant of slavery and offered some severe criticism. Lucknow Session (1936) was chaired by Jawaharlal Nehru. *Act of 1935 was the lengthiest enactment in the history of laws made by Britain for British India. It included 14 parts, 321 articles and 10 schedules. *The "**Instrument of Instructions**" of the Government of India Act, 1935 was included as Directive Principles of State Policy in India's Constitution in 1950.

1. **The Regulating Act was passed in –**

- (a) 1773
- (b) 1774
- (c) 1785
- (d) 1793

39th B.P.S.C. (Pre) 1994

Ans. (a)

Regulating Act, 1773, was passed by the British Parliament for the regulation of the British East India Company's Indian Territories, mainly in Bengal. The main provisions of the Act were the appointment of a Governor-General of Fort William in Bengal with supervisory powers over the Presidencies of Madras (now Chennai) and Bombay (now Mumbai). The Governor-General had a Council of four who were given the power to cast a vote but no veto. Warren Hastings was appointed the first Governor General of Bengal.

2. **In which year was the Regulation Act passed?**

- (a) A.D. 1757
- (b) A.D. 1765
- (c) A.D. 1773
- (d) A.D. 1793

56th to 59th B.P.S.C. (Pre) 2015

Ans. (c)

See the explanation of the above question.

3. **In which year Regulating Act was passed?**

- (a) 1753
- (b) 1757
- (c) 1764
- (d) 1773

M.P.P.C.S. (Pre) 2015

Ans. (d)

See the explanation of the above question.

4. **In which of the following Acts for the first time provision was made for the post of Governor-General of Bengal?**

- (a) Regulating Act, 1773
- (b) Pitt's Indian Act, 1784
- (c) Charter Act of 1813
- (d) Act of 1833

U.P.P.C.S. (Mains) 2013

Ans. (a)

See the explanation of the above question.

5. **The Supreme Court was set up for the first time in India under the:**

- (a) Regulating Act, 1773
- (b) Charter Act, 1853
- (c) Government of India Act, 1935
- (d) Indian Constitution Act, 1950

U.P.P.C.S. (Pre) 1998

Ans. (a)

The Regulating Act, (1773), established India's first Supreme Court, at Fort William, Calcutta. This Supreme Court consisted of a Chief Justice and three other regular Judges or Puisne Judges. Sir Elijah Impey was the first Chief Justice. The Supreme Court was the supreme judiciary over all British subjects including the provinces of Bengal, Bihar and Orissa. The Supreme Court came into force in 1774 AD.

6. **Supreme Court of Kolkata started in India was introduced by the Act of ?**

- (a) Pitts India Act
- (b) 1909 Act
- (c) 1919 Act
- (d) 1858 Act
- (e) None of these

Chhattisgarh P.C.S. (Pre) 2014

Ans. (e)

See the explanation of the above question.

7. **The first Chief Justice of Supreme Court established by the East India Company was –**

- (a) Elijah Impey
- (b) Courtney Ilbert
- (c) Phillip Francis
- (d) None of the above

Uttarakhand P.C.S. (Pre) 2012

Ans. (a)

See the explanation of the above question.

8. Which Act gave the right to reject the decision of the committee to Governor-General?

- (a) Regulating Act of 1773 (b) Pitt's India Act of 1784
(c) Act of 1786 (d) Act of 1813

U.P. P.C.S. (Pre) 1990

Ans. (c)

In 1786 AD, another bill was brought in the Parliament relating to India in a bid to prevail upon Cornwallis to accept the Governor-General of Bengal. Cornwallis wanted to have the power of both the Governor-General and the Commander-in-Chief. The provisions of the Act were that the Governor-General in special cases relating to peace, defence or well-being of Indian empire, had the power to override the majority of the Council and enforce their rule.

9. Which of the following Acts empowered Lord Cornwallis to overrule the decision of his Council?

- (a) Regulating Act (b) Act of 1786
(c) Charter Act of 1793 (d) Charter Act of 1813

44th B.P.S.C. (Pre) 2000

Ans. (b)

See the explanation of the above question.

10. By a Regulation in 1793, the District Collector was deprived of his judicial powers and made the collecting agent only. What was the reason for such regulation?

- (a) Lord Cornwallis felt that the District Collector's efficiency of revenue collection would enormously increase without the burden of other work.
(b) Lord Cornwallis felt that judicial power should compulsorily be in the hands of Europeans. While Indians could be given the job of revenue collection in the districts.
(c) Lord Cornwallis was alarmed at the extent of power concentrated in the District Collector and felt that such absolute power was undesirable in one person.
(d) The judicial work demanded a deep knowledge of India and a good training in law and Lord Cornwallis felt that District Collector should be only a revenue collector.

I.A.S. (Pre) 2010

Ans. (c)

Cornwallis judicial reforms took their final shape in 1793 AD and were embodied in the famous Cornwallis Code. The new reforms were based on the principle of Separation of Powers. Under the influence of the eighteenth-century French philosophers Cornwallis sought to separate the revenue administration from the administration of justice. The Collector was the head of the revenue department in a district

and also enjoyed extensive judicial and magisterial powers. Cornwallis believed that concentration of all powers in the hands of the Collector in the District retards the improvement as a judge of the Diwani Adalat redress the wrongs done by him as collector or assessor of revenue? Thus, neither the landlords nor the cultivators could regard the Collector as an impartial Judge in revenue cases. The Cornwallis Code divested the Collector of all judicial and magisterial powers and left him with the duty of administration of revenue. A new class of officer called the District Judge was created to preside over the District Civil Court. The District Judge was empowered with magisterial and police functions.

11. The monopoly of the East India Company in India's trade was abolished in –

- (a) 1793 (b) 1803
(c) 1813 (d) 1833

U.P.P.C.S. (Mains) 2015

Ans. (c)

The monopoly of East India Company in India's trade was abolished by the Charter Act of 1813. However they held the monopoly on the trade of Tea and trade with China.

12. By which Act, the British Parliament had abolished the monopoly of East India Company's trade in India except Tea and China trade?

- (a) Charter Act of 1813 (b) Charter Act of 1833
(c) Charter Act of 1853 (d) Charter Act of 1873

U.P. R.O./A.R.O. (Mains) 2017

Ans. (a)

See the explanation of the above question.

13. By which of the following regulation, British East India Company's trade monopoly in India was abolished?

- (a) Charter Act of 1793 (b) Charter Act of 1813
(c) Charter Act of 1833 (d) Charter Act of 1853
(e) None of these

Chhattisgarh P.C.S. (Pre) 2017

Ans. (b)

See the explanation of the above question.

14. What is not true in relation to the Charter Act, 1813?

- (a) It allowed Christian Missionaries to come to India for the purpose of enlightenment
(b) It asserted the sovereignty of the British Crown over the company's territories in India
(c) This Act abolished the trade monopoly of the East India Company including its tea trade
(d) None of the above

Chhattisgarh P.C.S. (Pre) 2022

Ans. (c)

See the explanation of the above question.

15. Which of the following is one of the reasons for considering the Charter Act of 1813 important for India?

- (a) It banned propaganda by Christian Missionaries in India.
- (b) It emphasized industrialization in India.
- (c) It made a financial allocation for the education of Indian people.
- (d) It approved the development of a railway system in India.

U.P. P.C.S. (Mains) 2016

Ans. (c)

The Charter Act, 1813 compelled the East India Company to assert the responsibility for the education of the Indians. It made a provision for an annual grant of a sum of 1 lakh rupees for the promotion of education in India.

16. Which one of the following provisions was not made in the Charter Act of 1833?

- (a) The trading activities of the East India Company were to be abolished.
- (b) The designation of the supreme authority was to be changed as the Governor General of India-in-Council.
- (c) All law-making powers to be conferred on Governor-General-in-council.
- (d) An Indian was to be appointed as a Law Member of the Governor-General's Council.

I.A.S. (Pre) 2003

Ans. (d)

The Charter Act, 1833, was renewed on the condition that Company should abandon its trade entirely, both with India and China and permit Europeans to settle freely in India. The Company lost its monopoly in China and also the trade of tea which it enjoyed with the Charter Act of 1813. Governor-General of Bengal was made the Governor-General of British India with this Act, and all financial and administrative powers were centralized in the hands of Governor-General-in-Council. The 4th member was not entitled to act as a member of the Council except for legislative purposes. A British member was appointed as a Law Member in the Governor-General's Council. A first fourth person appointed as the Member of the Council was Lord Macaulay. Thus option (d) is the correct answer.

17. By which one of the following Acts was the Governor General of Bengal designated as the Governor General of India?

- (a) The Regulating Act

- (b) The Pitt's India Act
- (c) The Charter Act of 1793
- (d) The Charter Act of 1833

I.A.S. (Pre) 2023

Ans. (d)

See the explanation of the above question

18. Which of the among following had recommended to hold the Indian Civil Service Examination simultaneously in India & England?

- (a) Aitchison Commission
- (b) Hobhouse Commission
- (c) Montagu-Chelmsford Report
- (d) Lord Cornwallis

U.P. U.D.A./L.D.A. (Spl) (Mains) 2010

Ans. (c)

The Montagu-Chelmsford Report recommended to increase the number of Indians in administration and also recommended that the examination shall be jointly held in Britain and India for Civil Services. On their recommendation, the Civil Services was held together in England and India from 1922 AD. The Aitchison Commission submitted its report in 1887 AD. The Commission opposed to the demand of the simultaneous holding, in England as well as in India.

19. Which Act provisioned competitive exam system for Civil Services?

- (a) 1833
- (b) 1853
- (c) 1858
- (d) 1882

46th B.P.S.C. (Pre) 2003

Ans. (b)

The Charter Act, 1853 provided that the salary of the members of Board of Control, its Secretary and other Officers would be fixed by the British Government but the payments would be made out of the Company's funds. The number of the Directors of the Court of Directors was reduced from 24 to 18 of whom 6 were to be nominated by the Crown. The Court of Directors was divested of its right to patronage and Company's services were thrown open to competition and no discrimination of any kind was to be made. A Committee with Macaulay was formed in the following year (1854) to give effect to the scheme of appointment in Civil Services through competition.

20. Which of the following Acts for the first time created a functioning Legislative Council in India?

- (a) Charter Act of 1793
- (b) Charter Act of 1813
- (c) Charter Act of 1853
- (d) Charter Act of 1833

U.P. P.C.S. (Mains) 2016

Ans. (c)

A decisive step had been initiated in the separation of powers between the Executive and the Legislature by the Charter Act of 1853. It was the first time in India when the Legislative Council was established. The total number of the members in the Legislative Council was 12.

21. In which of the following years the British Government finally agreed to hold the Indian Civil Services (I.C.S.) examination simultaneously in India and England?

(a) 1922 (b) 1923
(c) 1924 (d) 1925

U.P.P.C.S. (Mains) 2014

Ans. (a)

1922 AD onwards, ICS exam began to be held in India. In 1924 AD, Lee Commission had recommended in its report for the establishment of an independent and impartial Public Service Commission for India and on the basis of such recommendation, the Public Service Commission was established in 1926 AD. Subsequently by the Government of India Act, 1935 AD, Public Service Commission were established separately for both the Central and the State Government Services. Under this act, Federal Public Service Commission was formed in Place of Public Service Commission.

22. With reference to Indian Civil Services, which of the following statement/s is/are correct?

1. Government of India Act, 1919 provided for a separate examination for the Indian Civil Service, which was to be held in India.
2. In the Indian Civil Service in 1941, the percentage of Indians was more as compared to the Europeans.

Select the correct answer using the code given below :

Code :

(a) Only 1 (b) Only 2
(c) Both 1 and 2 (d) Neither 1 nor 2

U.P. R.O./A.R.O. (Pre) 2021

Ans. (c)

From 1922 AD, on the basis of Government of India Act, 1919 Civil Services Examination was started in India as well. On 1st January, 1941 AD, the participation of Indians (617) in the civil service exceeded that of Europeans (585).

23. Match List- I with List- II and select correct answer by using codes given below –

List-I	List-II
A. Establishment of Board of control	1. Regulating Act, 1773
B. Establishment of Supreme Court	2. Pitt's India Act, 1784
C. Permission of appointment of Christian missionaries in India	3. Charter Act, 1813

D. Law Member in Governor General Council 4. Charter Act, 1833

Code :

	A	B	C	D
(a)	1	2	3	4
(b)	2	1	3	4
(c)	1	2	4	3
(d)	2	4	1	3

U.P. U.D.A./L.D.A. (Pre) 2002

Ans. (b)

The correctly matched list is as follows :

Establishment of –	Pitt's India Act, 1784
Board of Control	
Establishment of Supreme Court	Regulating Act, 1773
Permission of appointment of Christian missionaries in India	Charter Act, 1813
Law Member in Governor General Council	Charter Act, 1833

24. Match List-I (Acts of Colonial Government of India) with List-II (Provisions) and select the correct answer using the codes given below the lists –

List-I (Acts of Colonial Government of India)

- A. Charter Act, 1813
- B. Regulating Act, 1773
- C. Act of 1858
- D. Pitt's India Act, 1784

List-II (Provisions)

1. Set up a Board of Control in Britain to fully regulate the East India
2. Company's trade monopoly in India was ended
3. The power to govern was transferred from the East India Company to the British Crown
4. The Company's directors were asked to present to the British Government all correspondence and documents pertaining to the administration of the company

Code :

	A	B	C	D
(a)	2	4	3	1
(b)	1	3	4	2
(c)	2	3	4	1
(d)	1	4	3	2

I.A.S. (Pre) 2002

Ans. (a)

The Charter Act of 1813 ended the Company's trade monopoly except over Tea and trade with China. The Regulating Act of 1773 required the Company's directors to present to the British Government all correspondence and documents pertaining to the administration of Company. Act of 1858 transferred the power from East India Company to British Crown to govern the administration and Pitt's India Act 1784 set up a Board of Control in Britain to fully regulate the affairs of East India Company.

25. Under which Act, Board of control was established –

- (a) Regulating Act, 1773 (b) Settlement Act, 1781
(c) Charter Act, 1813 (d) Pitt's India Act, 1784

U.P.P.C.S. (Mains) 2015

Ans. (d)

See the explanation of the above question.

26. By which Act British Govt. abolished the monopoly of East India Company on trading of tea and sugar?

- (a) Regulating Act, 1773 (b) Pitt's India Act, 1784
(c) Charter Act, 1813 (d) Charter Act, 1833

M.P.P.C.S. (Pre) 2013

Ans. (*)

If "sugar and China" would be mentioned in a question instead of "sugar and tea," option (d) would be the correct answer. MPPSC accepted this question as wrong and provided bonus marks for this question.

27. British East India Company lost the monopoly of Tea trade by –

- (a) The Charter Act of 1793
(b) The Charter Act of 1813
(c) The Charter Act of 1833
(d) The Charter Act of 1853

U.P.P.C.S. (Pre) 2015

Ans. (c)

There were many consecutive Acts which were passed by British East India Company which as follows:
Charter Act 1833: All commercial advantages and rights were completely abolished by the Charter Act, 1833. Now, Company had only administrative right on behalf of the British Crown.

28. In which of the following year, almost the entire area of present Uttar Pradesh was separated from Bengal Presidency and placed under Agra Presidency?

- (a) 1832 A.D. (b) 1833 A.D.
(c) 1834 A.D. (d) 1835 A.D.

U.P.R.O./A.R.O. (Pre.) 2021

Ans (c)

The area of present-day Uttar Pradesh was acquired gradually by East India Company from the last quarter of 18th century to mid 19th century. This entire area was first placed with Bengal presidency, but in 1834, it was separated to form North-Western Provinces under Agra Presidency.

29. Which of the following Acts transferred the Government of India from East India Company to the Crown?

- (a) Charter Act, 1833
(b) Charter Act, 1853
(c) The Government of India Act, 1858
(d) Indian Councils Act, 1861

U.P.P.S.C. (GIC) 2010

U.P.P.C.S. (Mains) 2007

Ans. (c)

British Parliament tabled the Government of India Act, 1858, which transferred powers from the East India Company to the Crown. A member of the British Parliament was made Secretary of State for India exercise powers on behalf of the Crown and was responsible to the British Parliament, assisted by the Advisory Council of India. Council of India had 15 members, 8 appointed by the Crown and 7 elected by the Court of Directors. Secretary of State for India was to exercise the powers which were being enjoyed by the Court of Directors and Board of Control.

30. Consider the following statements–

- 1. The Charter Act, 1853 abolished East India Company monopoly of Indian trade.**
- 2. Under the Government of India Act, 1858 the British Parliament abolished the East India Company altogether and undertook the responsibility of ruling India directly.**

Which of the statement(s) given above is/are correct?

- (a) 1 only (b) 2 only
(c) Both 1 and 2 (d) Neither 1 nor 2

I.A.S. (Pre) 2006

Ans. (b)

The Charter Act of 1813 ended the monopoly of the East India Company in India. However, the company's monopoly in trade with China and trade in tea remained intact. Thus, statement 1 is not correct. British Parliament brought the Government of India Act, 1858, which transferred powers from the East India Company to the Crown and took the responsibility of ruling India directly. Thus, only 2 statement is correct.

31. Which one of the following Acts empowered the Governor- General of India to issue Ordinances:

- (a) Charter Act of 1833
(b) Indian Councils Act of 1861
(c) Indian Councils Act of 1892
(d) Indian Councils Act of 1909

U.P. U.D.A./L.D.A. (Pre) 2001
U.P.P.C.S. (Pre) 1997

Ans. (b)

Indian Council Act, 1861 empowered Governor-General to issue Ordinance in Emergency Period. These Ordinances were applicable for maximum of 6 months.

32. Which one of the following Acts of British India strengthened the Viceroy's authority over his executive council by substituting "portfolio" or departmental system for corporate functioning?

- (a) Indian Councils Act, 1861
- (b) Government of India Act, 1858
- (c) Indian Councils Act, 1892
- (d) Indian Councils Act, 1909

I.A.S. (Pre) 2002

Ans. (a)

The Indian Council Act, 1861, strengthened the Viceroy's authority. Canning reorganized his executive Council, instituting departmental distribution of responsibilities. He substituted 'portfolio' or department system by which every department of administration was headed by an individual.

33. Which of the following Act empowered Indian legislative assembly to make discussions on a budget?

- (a) Indian Councils Act, 1861
- (b) Indian Councils Act, 1892
- (c) Indian Council Act, 1909
- (d) India Administration Act, 1919

U.P. U.D.A./L.D.A. (Pre) 2002

Ans. (b)

The Indian Councils Act, 1892 was passed by the Parliament of the United Kingdom. The main provisions of this act were as under:

- (i) The Indian Councils Act, 1892 gave the members the right to ask questions on Budget or matters of public interest. However none of them was given the right to ask supplementary questions.
- (ii) The Additional members of the Council could ask questions of public interest under this Act, after pre-information of six days.

34. By which of the following Acts, the British for the first time introduced the system of indirect elections in India?

- (a) 1909
- (b) 1861
- (c) 1867
- (d) 1892

U.P. P.C.S. (Mains) 2016

Ans. (d)

The principle of representation and indirect way of the election was first incorporated in the Indian Council Act of 1892.

35. To control the media in India, 'Acts' were passed in –

- (a) 1835, 1867, 1878, 1908
- (b) 1854, 1864, 1872, 1910
- (c) 1854, 1872, 1908, 1910
- (d) 1867, 1908, 1910, 1919

56th to 59th B.P.S.C. (Pre) 2015

Ans. (a)

In 1835, the Press Act was announced for the censorship of media. The Press and Registration of Books act was passed in 1867. The Vernacular Press Act was passed in 1878 by Lord Lytton to control the printing and circulation of seditious material, specifically that which could produce disaffection against the British Government in India in the minds of the masses. In addition to this in 1908, Lord Minto passed an act to regulate the press. In this Act, the Government was authorized to seize any publication if found anti-Government.

36. When were High Courts established in Bombay, Madras and Calcutta?

- (a) 1861
- (b) 1851
- (c) 1871
- (d) 1881

U.P.P.C.S. (Pre) 2013

U.P.U.D.A./L.D.A. (Spl) (Pre) 2010

Ans. (a)

Bombay, Madras and Calcutta High Courts were established in 1862 under the Indian High Court Act, 1861. On this basis, the nearest answer is option (a).

37. The most short-lived of all of Britain's constitutional experiments in India was:

- (a) The Indian Council Act of 1861
- (b) Indian Council Act of 1892
- (c) Indian Council Act of 1909
- (d) Government of India Act of 1919

I.A.S. (Pre) 1999

Ans. (c)

The most short-lived of all of Britain's constitutional experiments in India was Indian Councils Act of 1909. In words of Ramsay MacDonald "this reform was an incomplete and short-termed agreement between democracy and bureaucracy."

38. Which of the following Act provided for communal representation in British India?

- (a) Indian Councils Act, 1892
- (b) Minto-Morley Reforms, 1909
- (c) Montague-Chelmsford Reforms, 1919
- (d) Government of India Act, 1935

M.P. P.C.S. (Pre) 2019

Ans. (b)

Minto-Morley/ Morley-Minto Reforms, 1909 provided for communal representation in British India. Indian Council Act, 1909 is also known as Morley-Minto Reform. Lord Minto is known as the Father of Communal Electrote in India.

39. Which of the following Acts introduced separate electorate system in India?

- (a) The Regulating Act, 1773
- (b) The Charter Act, 1833
- (c) The Pitt's India Act, 1784
- (d) The Indian Councils Act, 1909
- (e) None of the above/More than one of the above

66th B.P.S.C. (Pre) 2020

Ans (d)

Indian Council Act, 1909 introduced separate electorate for Muslims in the country. The act also called Marley-Minto Reforms, 1909 introduced communal representation in the country.

40. The declaration of reforms on August 20, 1917 is known as:

- (a) Montagu Declaration
- (b) Morley Declaration
- (c) Minto Declaration
- (d) Chelmsford Declaration

Chhattisgarh P.C.S. (Pre) 2011

Ans. (a)

On 20th August, 1917 the reform made by Edwin Montagu (Secretary of State for India) and Lord Chelmsford is known as 'Montagu Declaration.'

41. Who is known as father of Dyarchy?

- (a) Lord Clive
- (b) Hector Munro
- (c) Lord Macaulay
- (d) Sir Lionel Curtis
- (e) None of the above/More than one of the above

B.P.S.C. (Pre) 2016

Ans. (d)

Sir Lionel Curtis is known as the father of Dyarchy. Dyarchy was a system of double government introduced by the Government of India Act (1919) for the provinces of British India.

42. The Montagu-Chelmsford Report formed the basis of –

- (a) the Indian Councils Act, 1909
- (b) the Government of India Act, 1919
- (c) the Government of India Act, 1935
- (d) the Indian Independence Act, 1947

Jharkhand P.C.S. (Pre) 2011

Ans. (b)

The basis of the Indian Council Act, 1919 was the report of Secretary of State for India Edwin Montagu and Viceroy Lord Chelmsford.

43. Who was the Prime Minister of England when the Montague-Chelmsford Act was passed in 1919?

- (a) Lloyd George
- (b) George Hamilton
- (c) Sir Samuel Hoare
- (d) Lord Salisbury
- (e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2017

Ans. (a)

David Lloyd George was the Prime Minister of England (U.K.) when the Montagu-Chelmsford Act (Indian Council Act, 1919) was passed in 1919. His tenure as PM was from 1916 to 1922.

44. In which Constitutional document was Dyarchy System introduced in Indian provinces?

- (a) 1892
- (b) 1909
- (c) 1919
- (d) 1935

U.P. P.C.S. (Pre) 2005

U.P. P.C.S. (Pre) 2004

Ans. (c)

The Montagu-Chelmsford Reform of 1919 was introduced by the British Government in India to introduce self-governing institutions gradually to India. In this 'Dyarchy in the Provinces' was introduced.

Reserved subjects like Finance, Law and order, Army, Police, etc. and Transferred subjects like Public health, education, agriculture, Local Self-Government, etc. were included. The reserved subjects were kept with the Governor and his executive council. While the administration of the transferred subjects was handed over to the ministers responsible to the Provincial Legislature.

45. In the context of Indian history, the principle of 'Dyarchy (diarchy)' refers to :

- (a) Division of the central legislature into two houses
- (b) Introduction of double government i.e., Central and State governments.
- (c) Having two sets of rulers; one in London and another in Delhi
- (d) Division of the subjects delegated to the provinces into two categories

I.A.S. (Pre) 2017

Ans. (d)

See the explanation of the above question.

46. The Montague-Chelmsford Proposals were related to

- (a) Social reforms
- (b) Educational reforms
- (c) Reforms in police administration
- (d) Constitutional reforms

I.A.S. (Pre) 2016

Ans. (d)

See the explanation of the above question.

47. The Government of India Act of 1919 is clearly defined –

- (a) the separation of power between the Judiciary and the Legislature
- (b) the jurisdiction of the Central and Provincial Governments
- (c) the powers of the Secretary of State for India and the Viceroy
- (d) None of the above

I.A.S. (Pre) 2015

Ans. (b)

See the explanation of the above question.

48. The principle of Dyarchy was introduced by the Act of –

- (a) 1861
- (b) 1892
- (c) 1909
- (d) 1919

Uttarakhand P.C.S. (Mains) 2002

Ans. (d)

See the explanation of the above question.

49. Identify the incorrect statement about Government of India Act 1919:

- (a) This Act is also known as Morley-Minto Reforms Act.
- (b) This Act separated the Central and Provincial subjects.
- (c) The Government of India Act 1919 came into force in 1921.
- (d) Montague was the Secretary of State for India and Lord Chelmsford was the Viceroy of India

R.A.S./R.T.S. (Pre) 2016

Ans. (a)

See the explanation of the above question.

50. Consider the following statements –

Assertion (A) : The structure and characteristics of governance remained unitary and central with enforcement of the Government of India Act of 1919.

Reason (R) : A large part of authority was delegated to Provinces.

Which of the following is correct in the reference of the above?

- (a) Both (A) and (R) are true, but (R) is the correct explanation of (A).

(b) Both (A) and (R) are true, but (R) is not the correct explanation of (A).

(c) (A) is true, but (R) is false.

(d) (A) is false, but (R) is true.

U.P. U.D.A./L.D.A. (Pre) 1998

Ans. (d)

The Government of India Act of 1919 introduced dyarchy system in provinces. Education, Local Self-Government, Medical Relief, Public Health and Sanitation, Agriculture, Cooperative Societies, Public Works, Excise, Justice, Police, Irrigation and Waterways, Labour, Welfare and Industrial Disputes, etc. 50 subjects were delegated to Provinces. On the other hand, Central Legislative had rights over 47 subjects such as Defence, Foreign Affairs, Money communication, etc. Although Governor-General had major executive powers but the structure and characteristics of governance were generally, federal. Thus, statement (A) is wrong and Reason (R) is correct.

51. Consider the following statements –

Assertion (A) : Dyarchy means division of administrative affairs in two sections.

Reason (R) : It was introduced for enforcement of responsible governance in Provinces.

Which of the following is correct in the reference of the above?

(a) Both (A) and (R) are true, but (R) is the correct explanation of (A).

(b) Both (A) and (R) are true, but (R) is not the correct explanation of (A).

(c) (A) is true, but (R) is false.

(d) (A) is false, but (R) is true.

U.P. U.D.A./L.D.A. (Pre) 1998

Ans. (a)

The Government of India Act, 1919 made a major change in Provincial governance. The Government of India Act, 1919 introduced the system of Dyarchy. Dyarchy means a dual set of Governments. The Government of India Act of 1919, made a provision for classification of the central and provincial subjects. The provincial subjects were divided into two groups: one was Reserved and another was Transferred. The Reserved subjects were kept with the Governor and his executive council and transferred subjects were handed over to the Minister responsible to the provincial legislature. This division of subjects was basically what they meant by introducing the Dyarchy.

52. The post of the Indian High Commissioner was created by which Act?

- (a) The Indian Councils Act, 1909
- (b) The Government of India Act, 1919
- (c) The Government of India Act, 1935
- (d) The Indian Independence Act, 1947
- (e) None of the above/More than one of the above

Ans (b)

Post of Indian High Commissioner was created by the Government of India Act, 1919.

53. These were included in prime elements of the Government of India Act, 1935 –

1. Provision of Federation
2. Provincial Autonomy
3. Introduction of Dyarchy in Provinces
4. To Authorization of Federal Legislature.

Select the correct answer by using codes structure given below:

- (a) 1 and 2 (b) 1 and 3
(c) 2 and 3 (d) 3 and 4

U.P. U.D.A./L.D.A. (Pre) 1998

Ans. (a)

The Government of India Act, 1935 made provisions for Federal Legislature. According to the Government of India Act, 1935, Dyarchy was abolished in the Provinces and Provincial Autonomy and Bicameral Legislature were applied.

54. Which among the following introduced the Provincial Autonomy in British India?

- (a) Government of India Act 1919
- (b) Cabinet Mission
- (c) Simon Commission
- (d) Government of India Act 1935

Jharkhand P.C.S. (Pre.) 2021

Ans (d)

See the explanation of the above question.

55. Which of the following report was the baseline of the Government of India Act, 1935?

- (a) The Cabinet Mission
- (b) The Cripps Mission
- (c) The Rowlette Commission
- (d) The Simon Commission

U.P. P.S.C. (GIC) 2010

Ans. (d)

The Government of India Act, 1919 made a provision in its Part V, that a statutory Commission would be set up at the end of 10 years after the Act was passed which would inquire into the working of the system of the Government. The Simon Commission of 1927 AD was an outcome of this provision. All-Party Conference presented the Nehru Report. The Simon Commission Report and three sessions of Round Table Conference in 1930 AD to 1932 AD respectively, made their recommendations which were embodied in a White Paper published in 1933 AD, which was considered by a Joint Select Committee of the British Parliament and was the baseline of the Government of India Act, 1935 AD.

56. Consider the following statements:

Some of the main features of the Government of India Act, 1935 were the:

1. Abolition of dyarchy in the Governor's provinces.
2. The power of the Governors to veto legislative action and to legislate on their own.
3. Abolition of the principle of communal representation.

Which of the statements given above is/are correct?

- (a) 1 only (b) 1 and 2
(c) 2 and 3 (d) 1, 2 and 3

I.A.S. (Pre) 2004

Ans. (b)

The Government of India Act 1935 was originally passed in August, 1935 and is said to have been the longest (British) Act of Parliament ever enacted by that time. The most significant aspects of the Act were:

The grant of a large measure of autonomy to the provinces of British India which ended the system of dyarchy introduced by the Government of India Act, 1919.

Provision of direct elections was made.

Provincial autonomy.

The establishment of a Federal Court.

All India Federation at the centre.

Membership of the provincial assemblies was altered to include more elected Indian representatives.

57. Government of India Act, 1935 abolished-

- (a) Provincial autonomy
- (b) Provincial dyarchy
- (c) Federal structure of India
- (d) Responsible Central Government

42nd B.P.S.C. (Pre) 1997

Ans. (b)

See the explanation of the above question.

58. Which of the following was not one of the features of the Government of India Act, 1935?

- (a) Reconstruction of the Governor General's Executive Council
- (b) Provincial Autonomy
- (c) Appraisal of the Act of 1935
- (d) Proposal for Federation of India

70th B.P.S.C. (Pre) 2024

Ans. (c)

The Government of India Act, 1935, introduced several key reforms:

- (a) The Governor-General's Executive Council was restructured to include more Indian members, though the Governor-General retained ultimate authority.
- (b) Provincial Autonomy granted provinces more independence in certain administrative areas, though the Governor still held significant powers.

(d) The Act proposed a federation that would incorporate both British India and princely states, but it was never fully implemented due to the princely states' refusal to join.

The Constitutional Autocracy principle was introduced by the Government of India Act of 1935. This act was the most elaborate act by the British Parliament. At the same time, it was the most complex document among the constitutional proposals prepared for India. In this act, the establishment of Union of India, the federal judiciary, the division of powers between the centre and the states etc. were arranged.

66. In which session, Indian National Congress had rejected the Government of India Act, 1935?

- (a) Ramgarh Session, 1940
- (b) Lucknow Session, 1936
- (c) Faizpur Session
- (d) None of these

U.P. U.D.A./L.D.A. (Pre) 2013

Ans. (b)

Indian National Congress rejected the Government of India Act, 1935 in Lucknow Session, 1936 AD. This session was presided by Pt. Jawaharlal Nehru.

67. Which of the following election/s of the Central Legislative Assembly was/were held under the Government of India Act, 1919?

- A. 1926
- B. 1937
- C. 1945

Select the correct answer using code given below :

Codes :

- (a) A only
- (b) B and C
- (c) A and C
- (d) A, B and C

R.A.S./R.T.S. (Pre) 2018

Ans. (c)

In the year 1923, 1926, 1930, 1934 and 1945 the elections of the Central Legislative Assembly were held under the Government of India Act 1919. The provincial assembly elections held in the year 1937 were held under the Government of India Act 1935.

68. In which year was the last election of India Legislature under the Government of India Act, 1919 held?

- (a) 1930
- (b) 1934
- (c) 1945
- (d) 1947

M.P. P.C.S. (Pre) 2020

Ans. (c)

See the explanation of the above question.

69. Who amongst the following had called the Government of India Act, 1935 as the "Charter of Slavery"?

- (a) Jawaharlal Nehru
- (b) M.A. Jinnah
- (c) Dr. Rajendra Prasad
- (d) Maulana Abul Kalam Azad

U.P. U.D.A./L.D.A. (Spl.) (Pre) 2010

Ans. (a)

The Government of India Act, 1935 received Royal assent on 2 August, 1935. The safeguards and the special powers vested in the Governor-General were something like a "Charter of Slavery" as mentioned and criticized by Jawaharlal Nehru. The Government of India Act, 1935 was the largest document in the entire history of British rule which had 14 Parts, 321 Sections and 10 Schedules.

70. The 'Instrumentation of Instructions' contained in the Government of India Act, 1935 have been incorporated in the Constitution of India in the year 1950 as—

- (a) Fundamental Rights
- (b) Directive Principles of State Policy
- (c) Extent of Executive Power of State
- (d) Conduct of Business of the Government of India

I.A.S. (Pre) 2010

Ans. (b)

The "Instrumentation of Instructions" contained in the Government of India Act, 1935 was incorporated in the Constitution of India in the year 1950 as Directive Principles of State Policy. The critics referred this part of Constitution as holy phrases.

71. In the Federation established by The Government of India Act of 1935, residuary powers were given to the:

- (a) Federal Legislature
- (b) Governor General
- (c) Provincial Legislature
- (d) Provincial Governors

I.A.S. (Pre) 2018

Ans. (b)

In the Federation established by the Government of India Act 1935, residuary powers were given to the Governor General.

72. By which of the following Acts was the India Council abolished?

- (a) Morley Minto Reform 1909
- (b) The Government of India Act 1919
- (c) The Government of India Act 1935
- (d) The Indian Independence Act 1947

U.P.R.O./A.R.O. (Pre) (Re-Exam) 2016

Ans (c)

India Council was abolished by The Government of India Act 1935. The Act was passed by Parliament of UK in 1935. Act was aimed at constitutional reforms in India. Through the act dyarchy was abolished at provincial level and was started at central level. Provinces were given more autonomy. Subjects were divided into Reserved and Transferred.

73. Who has said it: 'I have not to beg pardon in connection with the allegation that in the draft of the Constitution, a major part of the Government of India Act, 1935, has again been reproduced'?

- (a) Dr. Rajendra Prasad
- (b) Sardar Patel
- (c) Jawaharlal Nehru
- (d) Dr. B.R. Ambedkar

U.P.P.C.S. (Mains) 2015